

The Infant Milk Substitutes, Feeding Bottles and Infant Foods (Regulation of Production, Supply and Distribution) Act, 1992

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The Infant Milk Substitutes, Feeding Bottles and Infant Foods (Regulation of Production, Supply and Distribution) Act,
1992

UNION OF INDIA

India

The Infant Milk Substitutes, Feeding Bottles and Infant Foods (Regulation of Production, Supply and Distribution) Act,
1992

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The Infant Milk Substitutes, Feeding Bottles And Infant Foods (Regulation Of Production, Supply And Distribution) Act,
1992

(41 OF 1992)

13.

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Statement of Object and Reasons - Every child has a right to be adequately nourished as a means of attaining and

maintaining health. Infant malnutrition is a major contributory cause of high incidence of infant mortality and physical and mental handicaps. The health of infants and young children cannot be isolated from the health and nutrition of women. The mother and her infant form a biological unit. Breast-feeding is an integral part of the reproductive process. It is the natural and ideal way of feeding the infant and provides a unique biological and emotional basis for healthy child development. The anti-infective properties of mother's milk protect infants against diseases. The effect of breast-feeding on child spacing, on the health and well being of the mother, on family health and on national economy is well recognised. Breast-feeding is, therefore, a key aspect of self reliance and primary health care. It is, therefore, essential to protect and promote breast feeding and to protect pregnant women and nursing mothers from any influence that could disrupt it.

2. Inappropriate feeding practices lead to infant malnutrition, morbidity and mortality in our children. Promotion of infant milk substitutes and related products like feeding bottles and teats do constitute a health hazard. Promotion of infant milk substitutes and related products has been more extensive and pervasive than the dissemination of information concerning the advantages of mother's milk and breast feeding and contributes to decline in breast-feeding. In the absence of strong interventions designed to protect, promote and support breast-feeding this decline can assume dangerous proportions subjecting millions of infants to greater risks of infections, malnutrition and death.

3. In the light of the foregoing considerations and in view of the vulnerability of infants in the early months of life to the aforesaid risks and the risks involved in inappropriate feeding practices including the unnecessary and improper use of infant milk substitutes, feeding accessories and infant foods, it has become necessary to regulate the marketing of such products. For the proper nutrition and health of the world's children, the World Health Assembly adopted in May, 1981 on International Code for Marketing of Breast Milk Substitutes. The Government of India recognised this Code and adopted the "Indian National Code for Protection and Promotion of Breast-Feeding" (hereinafter referred to as the Code) in December, 1983.

4. The Code envisages that there shall be no advertising or other form of sales promotion of infant milk substitutes, feeding bottles and teats. The Code, in accordance with this general principle enjoins the health authorities to encourage and protect breast-feeding and also prescribes several measures to control the marketing and promotion of infant milk substitutes, feeding bottles, teats and infant foods.

5. The Bill proposes to give effect to the principles and aims of the Code. Accordingly, it prohibits advertisements of infant milk substitutes and feeding bottles and also prescribes measures to ensure that in marketing of infant milk substitutes no impression is given that feeding of these products is equivalent to, or better than, breast-feeding. The provisions relating to labelling and quality control of infant milk substitutes, feeding bottles and infant foods are proposed to be implemented through the concerned Departments in the State Government and Union territory administrations under the overall control of the Ministry of Health and Family Welfare. Contravention of the provisions of the Bill will be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to five thousand rupees, or with both. However, the contravention of certain provisions of the Bill relating to labelling or quality control of such substitutes or foods will be punishable with imprisonment for a term which shall not be less than six months but which may extend to three years and with fine which shall not be less than two thousand rupees.

6. The Bill seeks to achieve the above objects. -

Gazette of India., 8-5-1992, Pt. II, Section. 2, Ext., p.10 (No. 34). -

Amendment Act 38 of 2003-Statement of Objects and Reasons-The Infant Milk Substitutes, Feeding Bottles and Infant Foods (Regulation of Production, Supply and Distribution) Act, 1992 was enacted with a view to protecting and promoting breast-feeding and ensuring proper use of infant foods. During the course of implementation of the provisions of the enactment over the years, it has been found that some aspects have led to difficulties, which need to be clearly spelt out. The recent developments and findings of international agencies as well as researchers have revealed that ideally, the infant thrives best on exclusive breast-feeding for the first six months of life, as well as continued breast-feeding together with complementary foods for the first two years. The World Health Organisation by World Health Assembly Resolution No. 47.5, dated the 9th May, 1994 called upon all Member Nations to aim at achieving this goal. The said resolution, inter alia, required Member Nations to foster appropriate complementary feeding practices for the infants from the age of about six months and encourage continued breast-feeding as well as proper feeding with safe and adequate amounts of local foods until the infant attains the age of two years.

2. In order to review and suggest appropriate amendments in the said Act, the Department of Women and Child Development constituted a Task Force comprising of representatives from various Ministries and Departments of the

Central Government and Voluntary Agencies authorised under section 21 of the Act. The National Commission for Women has also considered the provisions of the Act and suggested certain modifications therein.

3. Taking into consideration the recommendations of the said Task Force and of the National Commission for Women and the difficulties being experienced in the implementation of the provisions of the Act, it has become necessary to amend the existing provisions so as to encourage continued breast-feeding and to prohibit all forms of advertising and promotion-light, sound, smoke or gas or by means of electronic transmission or by audio or visual transmission in relation to infant milk substitutes, feeding bottles and infant foods.

[29th December, 1992]

An Act to provide for the regulation of production, supply and distribution of infant milk substitutes, feeding bottles and infant foods with a view to the protection and promotion of breast-feeding and ensuring the proper use of infant foods and for matters connected therewith or incidental thereto.

Be it enacted by Parliament in the Forty-third Year of the Republic of India as follows:-

Brought into force on 1.8.1993 vide G.S.R. 527(E), dated 31.7.1993, published in the Gazette of India, Ext., Pt. II, Section 3(i), dated 31.7.1993.

1.

Short title, extent and commencement .-(1) This Act may be called The Infant Milk Substitutes, Feeding Bottles and Infant Foods (Regulation of Production, Supply and Distribution) Act, 1992.

(2)

It extends to the whole of India.

(3)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions .-(1) In this Act, unless the context otherwise requires,-

(a)

["advertisement "includes any notice, circular, label, wrapper or any other document or visible representation or announcement made by means of any light, sound, smoke or gas or by means of electronic transmission or by audio or visual transmission;]

(b)

"container "means a box, bottle, casket, tin, can, barrel, case, tube, receptacle, sack, wrapper or other thing in which any infant milk substitute, feeding bottle or infant food is placed or packed for sale or distribution;

(c)

"feeding bottle "means any bottle or receptacle used for the purpose of feeding infant milk substitutes, and includes a teat and a valve attached or capable of being attached to such bottle or receptacle;

(d)

"health care system "means an institution or organisation engaged, either directly or indirectly, in health care for mothers, infants or pregnant women, and includes a health worker in private practice, [a pharmacy, drug store and any association of health workers]

[Substituted by Act 38 of 2003, Section 2, for " but does not include a pharmacy or drug store" (w.e.f. 1.1.2004).]

;

(e)

"health worker "means a person engaged in health care for mothers, infants or pregnant women;

(f)

"infant food "means any food (by whatever name called) being marketed or otherwise represented as a complement to mother 's milk to meet the growing nutritional needs of the infant [after the age of six months and up to the age of two years]

[Substituted by Act 38 of 2003, Section 2, for " after the age of four months" (w.e.f. 1.1.2004).]

;

(g)

"infant milk substitute "means any food being marketed or otherwise represented as a partial or total replacement for mother 's milk, [for infant up to the age of two years]

[Substituted by Act 38 of 2003, Section 2, " whether or not it is suitable for such replacement" (w.e.f. 1.1.2004).]

;

(h)

"label "means a display of written, marked, stamped, printed or graphic, matter affixed to, or appearing upon, any container;

(i)

"prescribed "means prescribed by rules made under this Act;

(j)

["promotion "means to employ directly or indirectly any method of encouraging any person to purchase or use infant milk substitute, feeding bottle or infant food.]

[Inserted by Act 38 of 2003, Section 2 (w.e.f. 1.1.2004).]

(2)

Any reference in this Act to any other enactment or any provision thereof, shall, in relation to an area in which such enactment or such provision is not in force, be construed as a reference to the corresponding law or the relevant provision of the corresponding law, if any, in force in that area.

3.

Certain prohibitions in relation to infant milk substitutes [, feeding bottles and infant foods]

.-No person shall-

(a)

advertise, or take part in the publication of any advertisement, for the distribution, sale or supply of infant milk substitutes, feeding bottles or infant foods; or

(b)

give an impression or create a belief in any manner that feeding of [infant milk substitutes and infant foods are]

[Substituted by Act 38 of 2003, Section 3, for " infant milk substitutes is" (w.e.f. 1.1.2004).]

equivalent to, or better than, mother 's milk; or

(c)

[take part in the promotion of infant milk substitutes, feeding bottles or infant foods.]

[Substituted by Act 38 of 2003, Section 3, for Cl. (c) (w.e.f. 1.1.2004).]

4.

Prohibition of incentives for the use or sale of infant milk substitutes or feeding bottles or infant foods .-No person shall-

(a)

supply or distribute samples of infant milk substitutes or [feeding bottles or infant foods] or gifts of utensils or other articles; or

(b)

contact any pregnant woman or the mother of an infant; or

(c)

offer inducement of any other kind, for the purpose of promoting the use or sale of infant milk substitutes or [feeding bottles or infant foods] [[Substituted by Act 38 of 2003, Section 4, for " feeding bottles" (w.e.f.

1.1.2004

).]].

5.

Donations of infant milk substitutes or [feeding bottles or infant foods] or equipment or materials relating thereto

.-Subject to the provisions of sub-section (4) of section 8, no person shall donate or distribute-

(a)

infant milk substitutes or [feeding bottles or infant foods]

[Substituted by Act 38 of 2003, Section 5, for " feeding bottles" (w.e.f. 1.1.2004).]

to any other person except to an orphanage;

(b)

any informational or educational equipment or material relating to infant milk substitutes or [feeding bottles or infant foods]

[Substituted by Act 38 of 2003, Section 5, for " feeding bottles" (w.e.f. 1.1.2004).]

:

Provided that nothing in this clause shall apply to the donation or distribution, subject to such conditions and restrictions as may be prescribed, of such equipment or material through the health care system.

6.

Information on containers and labels of infant milk substitutes or infant foods .-(1) Without prejudice to the provisions of [the Food Safety and Standards Act, 2006 (34 of 2006

)] and the rules made thereunder, no person shall produce, supply or distribute any infant milk substitute or infant food unless every container thereof or any label affixed thereto indicates in a clear, conspicuous and in an easily readable and understandable manner, the words "important notice "in capital letters in such language as may be prescribed and indicating thereunder the following particulars in the same language, namely:-

(a)

a statement "mother 's milk is best for your baby "in capital letters;

(b)

a statement that infant milk substitute or infant food should be used only on the advice of a health worker as to the need for its use and the proper method of its use;

(c)

a warning that infant milk substitute or infant food is not the sole source of nourishment of an infant;

(d)

the instructions for its appropriate preparation and a warning against the health hazards of its inappropriate preparation;

(e)

the ingredients used;

(f)

the composition or analysis;

(g)

the storage conditions required;

(h)

the batch number, date of its manufacture and the date before which it is to be consumed, taking into account the climatic and storage conditions of the country;

(i)

such other particulars as may be prescribed.

(2)

No container or label referred to in sub-section (1) relating to [infant milk substitute or infant food]

[Substituted by Act 38 of 2003, Section 3, for " infant milk substitutes" (w.e.f. 1.1.2004).]

shall-

(a)

have pictures of an infant or a woman or both; or

(b)

have pictures or other graphic material or phrases designed to increase the saleability of [infant milk substitute or infant food]

[Substituted by Act 38 of 2003, Section 3, for " infant milk substitutes" (w.e.f. 1.1.2004).]

; or

(c)

use on it the word "humanised "or "maternalised "or any other similar word; or

(d)

bear on it such other particulars as may be prescribed.

7.

Educational and other materials relating to feeding of infants to contain certain particulars .-(1) [Every educational or other material including advertisements or material relating to promotion of infant milk substitutes, feeding bottles and infant foods], whether audio or visual, dealing with pre-natal or post-natal care or with the feeding of an infant and intended to reach pregnant women or mothers of infants shall include clear information relating to-

(a)

the benefits and superiority of breast-feeding;

(b)

the preparation for, and the continuance of, breast-feeding;

(c)

the harmful effects on breast-feeding due to the partial adoption of bottle feeding;

(d)

the difficulties in reverting to breast-feeding of infants after a period of feeding by infant milk substitute;

(e)

the financial and social implications in making use of infant milk substitutes and feeding bottles;

(f)

the health hazards of improper use of infant milk substitutes and feeding bottles;

[(fa) the date of printing and publication of such material and the name of the printer and publisher;]

[Inserted by Act 38 of 2003, Section 7 (w.e.f. 1.1.2004).]

(g)

such other matters as may be prescribed.

(2)

No material referred to in sub-section (1) shall be utilised to promote the use or sale of infant milk substitutes for [feeding bottles or infant foods]

[Substituted by Act 38 of 2003, Section 7, for " feeding bottles" (w.e.f. 1.1.2004).]

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8.

Health care system .-(1) No person shall use any health care system for the display of placards or posters relating to, or for the distribution of, materials for the purpose of promoting the use or sale of infant milk substitutes or feeding bottles, or infant foods:

Provided that the provisions of this sub-section shall not apply to-

(a)

the donation or distribution of informational or educational equipment or material made in accordance with the proviso to clause (b) of section 5; and

(b)

the dissemination of information to a health worker about the scientific and factual matters relating to the use of infant milk substitutes or feeding bottles or infant foods alongwith the information specified in sub-section (1) of section 7.

(2)

No person who produces, supplies, distributes or sells infant milk substitutes or feeding bottles or infant foods shall make any payment to any person who works in the health care system for the purpose of promoting the use or sale of such substitutes or bottles or foods.

(3)

No person, other than a health worker, shall demonstrate feeding with infant milk substitutes or infant foods to a mother of an infant or to any member of her family and such health worker shall also clearly explain to such mother or such other member, the hazards of improper use of infant milk substitutes or feeding bottles or infant foods.

(4)

No person, other than an institution or organisation, engaged in health care for mothers, infants or pregnant women, shall distribute infant milk substitutes or feeding bottles to a mother who cannot resort to breast-feeding and who cannot afford to purchase infant milk substitutes or feeding bottles.

(5)

An orphanage may purchase infant milk substitutes or feeding bottles at a price lower than their sale price for the purpose of utilising them in the said orphanage.

Explanation .-For the purposes of this sub-section, such purchases shall not amount to an inducement for promoting the use or sale of infant milk substitutes or feeding bottles.

9.

Inducement to health worker for promoting use of infant milk substitutes, etc

-(1) No person who produces, supplies, distributes or sells infant milk substitutes or feeding bottles or infant foods shall

offer or give, directly or indirectly, any financial inducements or gifts to a health worker or to any member of his family for the purpose of promoting the use of such substitutes or bottles or foods.

(2)

[No producer, supplier or distributor referred to in sub-section (1), shall offer or give any contribution or pecuniary benefit to a health worker or any association of health workers, including funding of seminar, meeting, conference, educational course, contest, fellowship, research work or sponsorship.]

10.

Special provision relating to employees of person who produces, supplies, distributes or sells infant milk substitutes, etc

-(1) No person who produces, supplies, distributes or sells infant milk substitutes or feeding bottles or infant foods shall fix the remuneration of any of his employees or give any commission to such employees on the basis of the volume of sale of such substitutes or bottles or foods made by such employees.

(2)

The employees of such person shall not perform any function which relates to educating a pregnant woman or mother of an infant on pre-natal or post-natal care of the infant.

11.

Standards of infant milk substitutes, feeding bottles or infant foods

-(1) No person shall sell or otherwise distribute any infant milk substitute or infant food unless it conforms to the standards, specified for such substitute or food under [the Food Safety and Standards Act, 2006 (

34 of 2006

)], and the rules made thereunder and the container thereof has the relevant Standard Mark specified by the Bureau of Indian Standards established under section 3 of the Bureau of Indian Standards Act, 1986 (

63 of 1986

) to indicate that the infant milk substitute or infant food conforms to such standards:

Provided that where no standards have been specified for any infant milk substitute or infant food under [the Food Safety and Standards Act, 2006 (

34 of 2006

)]

[Substituted by Act

34 of 2006

, Section 100, for " the Prevention of Food Adulteration Act, 1954 (

37 of 1954

)" (yet to be enforced).]

, no person shall sell or otherwise distribute such substitute or food unless he has obtained the approval of the Central Government in relation to such substitute or food and the label affixed to the container thereof under the rules made under that Act.

(2)

No person shall sell or otherwise distribute any feeding bottle unless it conforms to the Standard Mark specified by the Bureau of Indian Standards referred to in sub-section (1) for feeding bottles and such mark is affixed on its container.

12.

Powers of entry and search .-(1) [Any Food Safety Officer appointed under section 9 of the Food Safety and Standards Act, 2006 (

34 of 2006

)] (hereinafter referred to as [the Food Safety Officer]

[Substituted by Act

34 of 2006

, Section 100, for " Food Inspector" (yet to be enforced).]

) or any officer not below the rank of a Class I officer authorised in this behalf by the State Government (hereinafter referred to as the authorised officer) may, if he has any reason to believe that any provision of section 6 or section 11 has been or is being contravened, enter and search at any reasonable time any factory, building, business premises or any other place where any trade or commerce in infant milk substitutes or feeding bottles or infant foods is carried on or such substitutes or bottles or foods are produced, supplied or distributed.

(2)

The provisions of the Code of Criminal Procedure, 1973 (2 of 1974), relating to searches and seizures shall, so far as may be, apply to every search or seizure made under this Act.

13. Power to seize infant milk substitutes, etc., or containers thereof .-(1) If any [Food Safety Officer] or authorised officer has reason to believe that in respect of any infant milk substitute or feeding bottle or infant food or container thereof, the provisions of this Act have been or are being contravened, he may seize such substitute or bottle or food or container.

(2)

No such substitute or food or bottle or container shall be retained by any [Food Safety Officer]

[Substituted by Act

34 of 2006

, Section 100, for " Food Inspector" (yet to be enforced).]

or authorised officer for a period exceeding ninety days from the date of its seizure unless the approval of the District Judge, within the local limits of whose jurisdiction such seizure has been made, has been obtained for such retention.

14.

Confiscation .-Any infant milk substitute or feeding bottle or infant food or container thereof, in respect of which any provision of this Act has been or is being contravened, shall be liable to confiscation:

Provided that where it is established to the satisfaction of the Court adjudging the confiscation that the person in whose possession, power or control any such substitute or bottle or food or container is found is not responsible for the contravention of the provisions of this Act, the Court may, instead of making an order for the confiscation of such substitute or bottle or food or container, make such other order authorised by this Act against the person guilty of the breach of the provisions of this Act as it may think fit.

15.

Power to give option to pay cost in lieu of confiscation

-(1) Whenever any confiscation is authorised by this Act, the Court adjudging it may, subject to such conditions as may be specified in the order adjudging the confiscation, give to the owner thereof an option to pay in lieu of confiscation such cost not exceeding the value of the infant milk substitute or feeding bottle or infant food or container thereof in respect of which the confiscation is authorised as the Court thinks fit.

(2)

On payment of the cost ordered by the Court the seized infant milk substitute or feeding bottle or infant food or container shall be returned to the person from whom it was seized on the condition that such person shall, before making any distribution, sale or supply of such substitute or bottle or food or container, give effect to the provisions of this Act.

16.

Confiscation not to interfere with other punishments

.-No confiscation made or cost ordered to be paid under this Act shall prevent the infliction of any punishment to which the person affected thereby is liable under the provisions of this Act or under any other law.

17.

Adjudication

.-Any confiscation may be adjudged or costs may be ordered to be paid,-

(a)

without any limit, by the principal Civil Court of original jurisdiction within the local limits of whose jurisdiction such confiscation has been made or costs have been ordered to be paid, as the case may be;

(b)

subject to such limits as may be specified by the Central Government in this behalf, by such other Court, not below a Civil Court having pecuniary jurisdiction exceeding five thousand rupees, as the Central Government may, by notification in the Official Gazette, authorise in this behalf.

18.

Giving of opportunity to the owner of the seized infant milk substitute or feeding bottle or infant food or container thereof

-(1)

No order adjudicating confiscation or directing payment of costs shall be made unless the owner of the infant milk substitute or feeding bottle or infant food or container thereof has been given a notice in writing informing him of the

grounds on which it is proposed to confiscate such substitute or bottle or food or container and giving him a reasonable opportunity of making a representation in writing, within such reasonable time as may be specified in the notice, against the confiscation and if he so desires, of being heard in the matter:

Provided that where no such notice is given within a period of ninety days from the date of the seizure of the infant milk substitute or feeding bottle or infant food or container thereof, such substitute or bottle or food or container shall be returned after the expiry of that period to the person from whose possession it was seized.

(2)

Save as otherwise provided in sub-section (1), the provisions of the Code of Civil Procedure, 1908 (5 of 1908), shall, so far as may be, apply to every proceeding referred to in sub-section (1).

19.

Appeal .-(1) Any person aggrieved by any decision of the Court adjudicating a confiscation or ordering the payment of costs may prefer an appeal to the Court to which an appeal lies from the decision of such Court.

(2)

The appellate Court may, after giving the appellant an opportunity of being heard, pass such order as it thinks fit confirming, modifying or revising the decision or order appealed against or may send back the case with such directions as it may think fit for a fresh decision or adjudication, as the case may be, after taking additional evidence if necessary:

Provided that an order enhancing any fine in lieu of confiscation or for confiscating goods of greater value shall not be made under this section unless the appellant has had an opportunity of making a representation and if he so desires, of being heard in his defence.

(3)

No further appeal shall lie against the order of the Court made under sub-section (2).

20.

Penalty .-(1) Any person who contravenes the provisions of sections 3, 4, 5, 7, 8, 9, 10 or sub-section (2) of [section 11 and the rules made under section 26 of the Act shall be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to five thousand rupees, or with both.

(2)

Any person who contravenes the provisions of section 6 or sub-section (1) of [section 11 and the rules made under section 26 of the Act] shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to three years and with fine which shall not be less than two thousand rupees:

Provided that the Court may, for any adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term which shall not be less than three months but which may extend to two years and with fine which shall not be less than one thousand rupees.

21.

Cognizance of offences .-(1) Save as otherwise provided in section 173 of the Code of Criminal Procedure, 1973 (2 of 1974), no Court shall take cognizance of any offence punishable under this Act except upon a complaint in writing made by-

(a)

[the Designated Officer or the Food Safety Officer directed under sub-section (5) of section 42 of the Food Safety and Standards Act, 2006 (

34 of 2006

); or]

(b)

an officer not below the rank of a Class I officer authorised in this behalf, by general or special order, by the Government; or

(c)

a representative of such voluntary organisation engaged in the field of child welfare and development and child nutrition as the Government may, by notification in the Official Gazette, authorise in this behalf.

(2)

Where a complaint has been made by a representative of the voluntary organisation authorised under clause (c) of sub-section (1) and the Court has issued a summons or, as the case may be, a warrant under sub-section (1) of section 204 of the Code of Criminal Procedure, 1973 (2 of 1974), the Assistant Public Prosecutor for that Court shall take

charge of the case and conduct the prosecution.

22.

Offences by companies .-(1) Where an offence under this Act has been committed by a company, every person who, at the time the offence was committed, was in charge of, and was responsible to, the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1), where any offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation .-For the purposes of this section,-

(a)

"company "means any body corporate and includes a firm or other association of individuals; and

(b)

"director ", in relation to a firm, means a partner in the firm.

23.

Offences to be cognizable and bailable

.-Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), an offence punishable under this Act shall be-

(a)

bailable;

(b)

cognizable.

24.

Protection of action taken in good faith

.-No suit, prosecution or other legal proceeding shall lie against the Central Government or any State Government or any officer of the Central Government or of any State Government [or a representative of such voluntary organisation which is notified under clause (c) of sub-section (1) of section 21] for anything which is in good faith done or intended to be done under this Act.

25.

Application of Act

37 of 1954

not barred .-The provisions of this Act or the rules made thereunder shall be in addition to, and not in derogation of, [the Food Safety and Standards Act, 2006 (

34 of 2006

)], or the rules made thereunder.

26.

Power to make rules .-(1) The Central Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(a)

the conditions and restrictions subject to which educational equipment and other material may be donated or distributed under the proviso to clause (b) of section 5;

(b)

the language in which the notice and other particulars shall be indicated under sub-section (1) of section 6;

(c)

the particulars which are to be indicated under clause (i) of sub-section (1) of section 6;

(d)

the particulars which a container or label shall not bear under clause (d) of sub-section (2) of section 6;

(e)

the matters to be included in the information which reaches pregnant women or mothers of infants under clause (g) of sub-section (1) of section 7;

(f)

any other matter which is required to be, or may be, prescribed.

(3)

Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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